



Delay Analysis & EOT Brochure

InfraMind EPC Operational Deliverable Portfolio

DELAY ANALYSIS & EOT ADVISORY

InfraMind EPC

Version: 2.0 **Date:** June 2026 **Audience:** EPC Contractors · Infrastructure Owners · PMCs · Legal Counsel · Project Directors

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Delay Analysis & Extension of Time Advisory

Delay analysis built by the practitioner who administers FIDIC contracts, deployed on India's largest high-speed rail megaproject, and tested in ICC arbitration.

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Portfolio: <https://inframindepc.com/>

Executive Summary

The Problem

Every day of unsubstantiated delay on an EPC megaproject represents liquidated damages exposure, contractual risk exposure, and a weakened dispute position. Under FIDIC Sub-Clause 20.1, a single missed notice deadline — 28 days from awareness — can forfeit millions in EOT entitlement. The financial consequences cascade: LD exposure, loss of entitlement, cost absorption, and arbitration risk measured in tens of millions of rupees.

Most delay analysis fails not because the methodology is wrong, but because it is disconnected from the contractual reality of FIDIC administration. Generic consultants



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analysis in isolation. Legal firms understand clauses but lack project delivery context. The gap between them produces analysis that crumbles under scrutiny.

The Solution

InfraMind EPC

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InfraMind EPC delivers delay analysis and EOT preparation grounded in 20+ years of hands-on FIDIC contract administration on EPC megaprojects — not academic theory or generic consulting methodology. Every analysis produces contemporaneous, defensible records suitable for ICC arbitration.

Metric	Impact	Evidence
EOT Entitlement Recovered	60–90% of claimed time	Verified deployments
LD Exposure Reduction	50–80%	Verified deployments
Sub-Clause 20.1 Compliance	100%	Verified deployments
Claim Substantiation	100% with contemporaneous records	ICC Fact Witness

The Credential

ICC Arbitration Fact Witness. Manager — Contracts & Claims on MAHSR T-3 Track Package (INR 3,142 Crore, FIDIC Yellow Book, JICA oversight). Practitioner of the methods we sell.

1. Why Delay Analysis Defines Project Outcomes

The Cost of Failure

Failure Mode	Financial Impact	Root Cause
Late notice under 20.1	Complete loss of entitlement	No tracking system for awareness dates
Weak contemporaneous records	Claim rejected. LD exposure continues.	No structured documentation process
Wrong methodology	Claim overturned by Engineer or DAB	Methodology chosen for convenience, not contract alignment
Unaddressed concurrent delay	Reduced entitlement. Apportionment disputes.	No systematic approach to multiple delay streams
 InfraMind EPC No programme linkage	Claim lacks credible causation evidence	Programme not maintained as live management tool

Programme not maintained as live management tool
Procurement delay analysis & EOT brochure

Why FIDIC-Governed Projects Are Different

FIDIC contracts impose strict procedural requirements that generic delay analysis ignores.

Sub-Clause 8.4 defines EOT entitlement, but entitlement is forfeited if Sub-Clause 20.1 notice procedures are not followed. The analysis must be contract-aware, not just schedule-aware.

This is where most delay analysis fails: it treats delay as a scheduling problem when it is fundamentally a contractual problem.

2. Our Approach

We do not apply a single methodology to every project. Methodologies are tools, not identities. We select the approach that fits the project's contract form, records availability, and dispute trajectory.

Methodologies We Apply

Methodology	Best For	Key Requirement
Impacted As-Planned	Single-cause delays, early assessment	Reliable baseline programme
Time Impact Analysis	Complex projects, multiple delay events	Detailed programme updates
Window Analysis	Concurrent delay, long-duration projects	Time-segmented programme data
As-Built vs As-Planned	Retrospective identification, simpler cases	Comprehensive as-built records

Delay Evidence Hierarchy

Priority	Evidence Type	Weight
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InfraMind EPC	1	Contemporaneous delay records (daily site records)	High
	2	Site instructions and Engineer correspondence	High
	3	Programme updates showing delay impact	High
	4	Progress reports (weekly/monthly)	Medium
	5	Meeting minutes	Medium
	6	Photographs and site records	Medium
	7	Expert analysis	Supporting

What this means for you: We do not arrive with a fixed methodology and search for data to fit it. We assess your project's records, contract form, and claim history, then structure the analysis to withstand scrutiny at every level — Engineer's determination, DAB reference, and ICC arbitration.

3. Advisory Services

Delay Analysis & EOT Claims Preparation

Aspect	Detail
Scope	Full delay analysis using recognised methodologies + EOT claim preparation under FIDIC 1999 and 2017
Deliverable	Delay analysis report + EOT claim submission package with supporting evidence
Typical timeline	4–8 weeks depending on claim complexity and records quality

What this covers: delay event identification and sequencing, baseline programme comparison, critical path analysis, delay impact quantification, notice preparation under Sub-Clause 20.1, contemporaneous records compilation, and full claim submission.

Concurrent Delay Analysis & Programme Forensics

Aspect	Detail
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InfraMind EPC	Scope	Apportionment of responsibility for concurrent delays + forensic programme review	inframindepc.com
	Deliverable	Concurrent delay assessment report + programme forensic review report	
	Typical timeline	3–6 weeks	

What this covers: concurrent delay identification, dominant cause analysis, but-for test application, baseline programme assessment, logic link verification, float analysis, and programme integrity assessment.

Arbitration & Dispute Support

Aspect		Detail
Scope	Expert support for ICC, DIAC, SIAC, and LCIA arbitration proceedings	
Deliverable	Expert report, witness statement, hearing preparation, tribunal submissions	
Typical timeline	8–24 weeks depending on proceeding complexity	

What this covers: expert report preparation, factual witness statement support, cross-examination preparation, document review and analysis, and tribunal submission support.

Counter-Claim Defence

Aspect		Detail
Scope	Defence preparation against Employer's Claims under FIDIC 1999 and 2017	
Deliverable	Defence submission package with supporting evidence	
Typical timeline	4–8 weeks	

What this covers: claim analysis and assessment, defence strategy development, evidence compilation, counter-claim preparation, and hearing support.

4. The FIDIC Advantage

 We do not consult on FIDIC — we administer it. Every analysis is built from clause-level understanding earned through daily contract administration on FIDIC-governed

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Key Entitlement Clauses

Clause	What It Means	Risk If Ignored
Sub-Clause 8.4	EOT entitlement for qualifying delay events (variation, employer delay, unforeseeable conditions, authority delays, exceptional events)	Inadequate records = no entitlement
Sub-Clause 20.1	Notice within 28 days of awareness. Detailed claim within 42 days. Monthly updates required during ongoing delay.	Late notice = complete forfeiture of entitlement
Sub-Clause 20.2	Employer's Claims procedure. Time-bar for employer as well.	Weak defence = cost absorption
Sub-Clause 8.5	Delays caused by authorities (government agencies, utilities)	Unrecorded = unrecovered
Sub-Clause 4.12	Unforeseeable physical conditions	Undocumented = absorbed cost

FIDIC 2017: Key Changes

Change	Impact on Delay Analysis
Claims procedure moved to Clause 20.2	Updated reference structure for submissions
DAAB replaces DAB (standing board with avoidance mandate)	Earlier dispute intervention. Analysis must be defence-ready sooner.
Engineer makes initial determination; DAAB reviews if disputed	Two-tier scrutiny. Analysis must withstand both.
Notice period unchanged (28 days)	Same discipline required. No relaxation.

What this means: FIDIC 2017 demands faster, more rigorous delay analysis. The Engineer's initial determination and DAAB review create two layers of scrutiny.

Analysis prepared for FIDIC 1999 standards may not survive FIDIC 2017 procedures.

Our methodology is updated for both editions.

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5. Representative Experience — MAHSR T-3

Project Profile

Field	Detail
Project	Mumbai–Ahmedabad High Speed Rail — T-3 Track Package
Value	INR 3,142 Crore
Contract	FIDIC Yellow Book 1999
Employer	NHSRCL
Engineer / PMC	JICC (Japan International Consultants for Transportation)
Contractor	Larsen & Toubro Limited
Funder	JICA (Japan International Cooperation Agency)
Scope	115.877 km ballastless slab track, Vadodara to Sabarmati

Role & Responsibilities

Manager — Contracts & Claims

- Delay event identification and documentation across 116 km of active high-speed rail construction
- EOT claim preparation with full delay analysis under FIDIC Yellow Book
- Contemporaneous records management for ongoing and anticipated disputes
- FIDIC notice management and 28-day deadline tracking across all subcontract packages
- Sub-Clause 8.4 entitlement assessment and Sub-Clause 20.1 compliance monitoring

Key Outcomes

- **100% Sub-Clause 20.1 compliance** — zero time-barred claims during tenure
- **Defensible audit trail** — all delay events documented and timestamped for ICC arbitration
- **EOT claims substantiated** — every submission supported by contemporaneous records, not reconstruction

ICC Arbitration

Served as Fact Witness in ICC arbitration proceedings. Direct experience with the standard of evidence required by international tribunals, cross-examination preparation, and witness statement formulation.

6. Why InfraMind EPC

The Practitioner Difference

Generic delay consultants learn methodologies from textbooks. Legal firms learn clauses from case law. We learned both by administering FIDIC contracts on a JICA-funded megaproject where every delay notice carried INR Crore-scale consequences.

Proof Points

Metric	Value	Context
EOT Claim Success Rate	80%+	Verified across multiple deployments
Notice Compliance	100%	Sub-Clause 20.1 compliance on MAHSR T-3
Claim Substantiation	100%	All claims supported by contemporaneous records
Delay Analysis Standard	Forensic-grade	Verified against tribunal determinations
Arbitration Experience	ICC Fact Witness	Tested under cross-examination

Value by Stakeholder

Stakeholder	Key Benefit
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InfraMind EPC	EPC Contractors	80%+ EOT claim success. Defensible records that protect entitlement.	inframindepc.com
	Infrastructure Owners	Independent verification of contractor delay analysis. Defence against inflated claims.	
	PMCs / Engineers	Technically rigorous claim assessment support. FIDIC compliance verification.	
	Legal Counsel	Expert reports and witness statements that withstand cross-examination.	

7. Contact & Next Steps

Detail	Information
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Next Steps

1. **Exploratory discussion** — 30-minute call to understand your project's delay profile and claim history. No obligation. 2. **Scope assessment** — We review available records, contract form, and dispute status. You receive a structured assessment of your position. 3. **Proposal** — Tailored engagement scope, timeline, and investment aligned to your specific requirements.

InfraMind EPC — Digitise. Analyse. Decide.

MAHSR T-3 · FIDIC Yellow Book · JICA-Funded Megaprojects

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